REQUEST #26-825: THE CLOSURE, AND THE FEE WAIVER

TO	Lane County Public Records, request #26-825
FROM	Robert Samuel White, P.O. Box 334, Reedsport, Oregon 97467
DATE	September 23, 2026
RE	Reopen #26-825; the fee waiver denial has no stated basis
TESTIMONY	v1.10

On September 9, 2026, I requested everything the county holds concerning me, reference P015875-090926.[1]

On September 23, 2026, at 10:36 AM, your office wrote that the county holds no records for items 3 through 7, that item 8 would be produced shortly, and that items 1 and 2 require an email search priced at $71.91, with the request held open sixty days for payment. The same message disposed of my fee waiver request in one sentence: “We have reviewed and considered your request for a fee waiver and have decided to deny it.” No basis was stated.

At 10:40 AM, four minutes later, your office released the item 8 records and wrote: “All responsive records have been provided to you, and your request will be closed.”

Both messages cannot be true. At 10:36 your office priced two categories as responsive and unproduced. At 10:40 it declared all responsive records provided and closed the request. The email search for items 1 and 2 has not been performed. The request is not complete, and closing it does not make it complete. Reopen it.

On the fee waiver, ORS 192.324(5) provides for a waiver when disclosure primarily benefits the general public, and a custodian’s denial must be reasonable under the totality of the circumstances. In Defense of Animals v. Oregon Health Sciences University, 199 Or App 160 (2005). A one-sentence denial with no stated basis applies no standard and weighs no factor. It is not a decision under the statute. Your office’s own questionnaire states that Lane County “considers all factors set out in the Attorney General’s Public Records and Meetings Manual and relevant legal authorities” in reviewing fee waiver requests. That is the county’s own chosen standard, in the county’s own words, and a one-sentence denial does not show it was applied. I address every consideration your questionnaire names, so that your office can state which one it claims weighs against the waiver.

The identity of the requester: I am the subject of the records, and I publish a public archive at oprdvolunteerabuse.org that holds the records of eight state and federal institutions in this matter, document by document, at permanent public addresses. It already carries this county’s correspondence.

The purpose: publication. The records will be published in full at permanent public addresses.

The character of the information: the records show what your office did with a citizen’s personal file. On March 27, 2026, at 11:04 AM, [USFS Special Agent] emailed a Lane County deputy, subject “Siltcoos WC Volunteer,” copying two state detectives, and transmitted my name, my date of birth, my driver’s license number, my residence, my work schedule, my duties, my correspondence, and my text messages, closing with a commitment to “keep you up to date.”[2] There was never a crime. The state’s own file closed with “there is no evidence White has committed any crimes.”[2] What your office received, created, and did with that email is government conduct, and items 1 and 2 are the only way the public sees it.

Whether the information is already public: it is not. What is public in this matter was published by me from agency productions.

The ability to disseminate: demonstrated, not promised. The September 3, 2026 state production was published in full the same day it was produced.[2] Records produced under this request will be public within days.

Commercial purpose and private gain: none. The archive is free to read and carries no advertising. My personal stake in my own records does not cancel the public interest in how they came to exist and where they went.

Your office's own considerations: the time and expense is your office's own estimate, $71.91 for one email search. The volume is two categories, scoped in your own spreadsheet. The segregation burden is the one your office already carried when it reviewed and released the item 8 records, free, in four minutes.

No consideration your questionnaire names weighs toward denial. The standard your office committed itself to, in its own questionnaire, requires granting the waiver. Reopen request #26-825, perform the search for items 1 and 2, and grant the waiver. If your office denies it again, state which factor weighs against the waiver and how it was weighed, so the denial can be evaluated as the law requires.

Respectfully,

Robert Samuel White

Sources

1. Request filed: everything the county holds, September 9, 2026.
2. The records are produced, September 3, 2026. The full PR27478 production.